

Second Amendment to Corporate Membership Agreement

This Second Amendment to the Corporate Membership Agreement (the “Amendment”) is made and entered into effective as of December 1, 2024 (the “Amendment Effective Date”) by and between Plug & Play LLC, a California limited liability company (also doing business as “Plug and Play Tech Center”) whose principal office is located at 440 N. Wolfe Road, Sunnyvale, CA 94085 (hereinafter “Plug and Play”) and Costco Wholesale Corporation, whose principal office is located at 999 Lake Drive Issaquah, WA 98027 (hereinafter “Client” or “CLIENT”), being Plug and Play and Client individually referred to as “Party” and jointly as “Parties.” Unless otherwise defined, all terms used in this Amendment shall have the same meanings as given them in the Agreement (as such term is defined below). In the event of any inconsistencies between this Amendment and the Agreement, the terms in this Amendment shall control. From and after the Amendment Effective Date, any reference to the Agreement shall mean and refer to the Agreement as amended by this Amendment or any prior amendment.

Recitals

WHEREAS, Client and Plug and Play executed that certain Corporate Membership Agreement effective December 1, 2022 (the “Agreement”);

WHEREAS, Client and Plug and Play executed that certain First Amendment to the Corporate Membership Agreement effective December 1, 2023 (the “First Amendment”); and

WHEREAS, Client and Plug and Play desire to amend the Agreement as herein stated.

NOW, THEREFORE, for and in consideration of the mutual covenants and promises herein contained, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. **Membership Upgrade.** Effective as of December 1, 2024, the Parties agree that CLIENT will be upgraded to an Anchor Member of Supply Chain at Plug and Play Silicon Valley. All references to “Ecosystem Plus” or “Eco Plus” in the Agreement, except on Exhibit A, are hereby deleted in their entirety and replaced with “Anchor” as of December 1, 2024.
2. **Section 2 Amended.** Effective as of December 1, 2024, Section 2 is hereby deleted in its entirety and replaced with the following:

2. “Anchor Benefits—Plug and Play Supply Chain

Plug and Play accelerates up to two batches of startups per year (each, a “Batch”) and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT in the Supply Chain industry (the “Program”). As an Anchor Member, CLIENT will receive the following:

- 2.1. **Committee Member:** CLIENT will occupy one (1) position on the Advisory Committee in the Program (a “Committee Member”). The “Advisory

Committee" consists of the Committee Members from all Founding Anchor Members and Anchor Members of the Supply Chain Program that will guide the trajectory of the Program.

- 2.2. Program Focus: CLIENT, as a Committee Member, will have the opportunity to set the technology focus and application call for the Program.
- 2.3. Elite List: Plug and Play will complete the initial review and vetting of the applications to select a list of qualified startups to be considered for admittance into the upcoming Batch of the Program (the "Elite List"). Committee Members will receive the Elite List, and from the Elite List Committee Members will vote to select startups to be reviewed at Selection Day.
- 2.4. Selection Day: CLIENT, as a Committee Member, will review the startups selected to pitch at Selection Day and vote to select startups to admit to the Program along with other Committee Members ("Selection Day").
- 2.5. Guaranteed Selection: CLIENT, as a Committee Member, may choose one (1) startup from Selection Day to admit into each batch of the Program.
- 2.6. EXPOs: "EXPO" takes place at the conclusion of each Batch, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate members, developers, investors, government entities, and universities. CLIENT may send representatives to attend EXPO and will receive distinction as a VIP judge and one three to five-minute speaking slot. Plug and Play may grant longer speaking engagements depending on topic and speaker.
- 2.7. Sourcing and Startup Introductions
 - 2.7.1. Private Dealflow Sessions: Plug and Play will facilitate private introductions between CLIENT and startups based on CLIENT's business challenges. These connections are made through "Dealflow Sessions"—up to six per Segment. Dealflow Sessions are structured as follows:
 - a) CLIENT shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to CLIENT and allow CLIENT to select up to eight startups it wishes to meet. Of the eight startups chosen by CLIENT, Plug and Play will arrange for CLIENT to meet (virtually or in-person) up to four startups during the Dealflow Session.

b) At the Dealflow Session, each of the selected startups will present to CLIENT, followed by open discussions between the selected startups and CLIENT.

c) If CLIENT or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate CLIENT's schedule.

2.7.2. Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions between CLIENT and startups as new opportunities arise during the Term (defined in Exhibit A: Fee Schedule).

2.7.3. Playbook: During the Term, CLIENT may access Plug and Play's proprietary virtual platform called "Playbook". Playbook allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members' use. CLIENT's representatives that wish to use Playbook must first create a profile on the Playbook platform.

2.8. Innovation Day: Up to once during Segment 3, Plug and Play will host an Innovation Day for CLIENT. "Innovation Day" is a half day event with startup pitches from startups selected by CLIENT. Plug and Play shall source and prepare a shortlist of up to 12 startups that will be eligible for Innovation Day. CLIENT will select the startups for Innovation Day based on the list prepared by Plug and Play or may propose additional startups to participate in Innovation Day. Plug and Play will be responsible for communicating with and managing the list of startups and guests invited to the Innovation Day.

2.8.1. Plug and Play shall manage Innovation Day, and such management shall include but not be limited to, preparing the schedule, organizing startup pitches, demo booths, keynote speakers and panelists, providing audio-visual equipment, catering, and managing day-of logistics.

2.8.2. CLIENT shall provide a venue for the event at CLIENT's headquarters or other venue mutually agreed upon by CLIENT and Plug and Play, and assist Plug and Play with compiling a guest list for Innovation Day.

2.8.3. CLIENT shall reimburse Plug and Play for any additional costs incurred during Innovation Day that are not specified in this section. Plug and Play will issue an invoice for Innovation Day within 10

days after the completion of Innovation Day. Payment is due no later than 30 days after receipt of the invoice from Plug and Play.

2.9. Events & Workshops

CLIENT's marketing and business development representatives are invited to participate and promote CLIENT's brand and products at all Supply Chain events and workshops. Plug and Play may invite CLIENT to all relevant events and workshops in Plug and Play's sole discretion. Plug and Play will provide:

2.9.1. Community Events: During the Term, Plug and Play will host events to build community within the innovation ecosystem focused on exposure between members of the Program, members of other programs, and startups. CLIENT may attend any community event during the Term.

2.9.2. Internal Events: Plug and Play will invite CLIENT to regular internal events during the Term, including, but not limited to, workshops, conferences, and roundtable discussions in the Supply Chain industry. Plug and Play may invite CLIENT to internal events relating to other industries in Plug and Play's sole discretion.

2.9.3. Friday Pitch Sessions: The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. CLIENT may attend any FPS either virtually or in-person."

3. Section 3.1 Amended. Section 3.1 is deleted in its entirety and replaced with the following:

"3.1. Plug and Play may not use CLIENT's logo and trademarks ("Marks") without CLIENT's prior written consent. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play."

4. Section 10 Amended. Plug and Play's notice section is hereby deleted in its entirety and replaced with the following:

"Plug & Play, LLC
Attention: Leyland Seto
Address: 440 N Wolfe Rd.,
Sunnyvale, CA 94085
Email: l.seto@pnptc.com"

5. Exhibit A: Fee Schedule Amended. Exhibit A: Fee Schedule is hereby deleted in its entirety and replaced with the following:

“Exhibit A: Fee Schedule

Description of Work	Segment Amount	Segment Term
Ecosystem Plus Membership (Supply Chain)—Segment 1	\$250,000	Start Date: December 1, 2022 End Date: November 30, 2023
Ecosystem Plus Membership (Supply Chain)—Segment 2	\$250,000	Start Date: December 1, 2023 End Date: November 30, 2024
Anchor Membership (Supply Chain)—Segment 3	\$350,000	Start Date: December 1, 2024 End Date: November 30, 2025

Term, Termination and Billing:

The term of this Agreement shall commence on the Effective Date and continue through November 30, 2025 (the “Term”). Each 12-month period of the Term commencing on December 1 is a “Segment.”

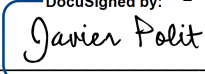
Plug and Play will invoice CLIENT on the first date of each Segment listed above, in the amount designated for that Segment. Payments made under this Agreement are made in advance and are not refundable. CLIENT shall pay Plug and Play no later than 30 days after receipt of an invoice from Plug and Play.

6. No Other Amendment. Except as amended herein, the Agreement shall remain in full force and effect.
7. Counterparts. This Amendment may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument.
8. Entire Agreement. There are and were no oral or written representations, warranties, understandings, stipulations, agreements, or promises made by either party, pertaining to the subject matter of this Amendment which have not been incorporated into this Amendment. This Amendment supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. This Amendment shall not be modified, changed, terminated, amended, superseded, waived, or extended except by a written instrument executed by the Parties hereto.

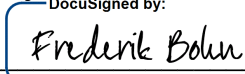
(Signature Page Follows)

The parties have executed this Amendment effective as of the date first set forth above.

Costco Wholesale Corporation

DocuSigned by:

By: _____
FF45828DC0CB4BE...
Name: Javier Polit
Title: EXEC VICE PRESIDENT
12/2/2024

Plug & Play, LLC

DocuSigned by:

By: _____
FAEDFECF5F35427...
Name: Frederik Bohn
Title: Senior Director
12/2/2024

DS

Paul Davis
IT Vendor Manager
11/27/2024

Contract Approvals

NOTE: ALL COMMENTS ARE VIEWABLE BY VENDOR

DS

PD

Reviewed by:

11/27/2024

Paul Davis

IT Vendor Manager

Optional Comment:

DS

CC

Reviewed and
Approved by:

11/27/2024

Christine Connors

International IT Operations Analyst

Optional Comment:

Initial

BM

Reviewed and
Approved by:

11/27/2024

Brian McBride

Manager - IT Innovation

Optional Comment:

DS



Reviewed and
Approved by:

11/28/2024

Troy Ness

Director - Innovation

Optional Comment:

Initial

tl

Reviewed and
Approved by:

11/29/2024

Torsten Lubach

CTO

Optional Comment: